

Dharampal v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 1 February 2021 · Writ-C No. 19757 of 2020 · **Writ disposed; petitioner relegated to clause 6.5 with stay of coercive action.**

HEADNOTE

A tubewell consumer challenged a bill-disconnection notice and recovery of Rs. 3,85,000, disputing bill accuracy. The Power Corporation pointed to the statutory representation under clause 6.5 of the U.P. Electricity Supply Code, 2005. The Court did not examine the bill and disposed of the writ by directing a clause 6.5 representation within 15 days, decision within one month after hearing, and no coercive action meanwhile.

FACTUAL SUMMARY

Dharampal, a tubewell consumer, filed a writ in the Allahabad High Court seeking to quash a disconnection notice covering 31 July 2019 to 31 August 2019, a mandamus restraining disconnection of his tubewell supply, and a restraint on recovery of electricity dues of Rs. 3,85,000. He disputed the accuracy of the bill issued by the Power Corporation. Counsel for the Corporation submitted that the petitioner had a statutory remedy of representation under clause 6.5 of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed-bill-alternate-remedy

HOLDING

Where a consumer disputes the accuracy of an electricity bill and seeks writ relief against a disconnection notice and recovery, the High Court will not decide the bill on merits and will relegate the consumer to a representation before the competent authority under clause 6.5 of the U.P. Electricity Supply Code, 2005, to be decided after hearing, staying coercive action until that decision. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy The writ challenging a disputed bill and disconnection notice was disposed of by relegating the consumer to clause 6.5 instead of examining the bill on merits. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The consumer's challenge was to the accuracy of the electricity bill; the Court treated clause 6.5 as the statutory forum for that dispute. ¶ 1

6.5-representation-as-appropriate-remedy The Court directed a representation to the competent authority under clause 6.5 within 15 days, to be decided within one month after hearing, with no coercive action in the meantime. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL AND LIABILITY FOR RS. 3,85,000

The Court did not examine the bill on merits and left the dispute to the clause 6.5 authority. ¶ 1